

8-9. 25CV05033 Wells Fargo Bank, N.A. v. Bassow, Madison

EVENT: (1) Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted

(2) Case Management Conference

Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is GRANTED. The Court will sign the proposed order.

10. 26CV00449 Layman, Zeke v. Autumn Creek Post Acute et al

EVENT: Second Amended Petition for Alternative Writ of Mandate and Damages

The hearing is continued to July 22, 2026 at 9:00am.

The Second Amended Petition, which was filed after the previous hearing, clarifies that Autumn Creek Post Acute is a DBA, and that the legal entity is Chico Heights Rehabilitation & Wellness Centre, LP, a California Limited Partnership. This information clarifies the applicable statute of service of summons and related documents – CCP 416.40.

CCP 416.40. Service on unincorporated association, general or limited partnership

A summons may be served on an unincorporated association (including a partnership) by delivering a copy of the summons and of the complaint:

(a) If the association is a general or limited partnership, to the person designated as agent for service of process in a statement filed with the Secretary of State or to a general partner or the general manager of the partnership

[Emphasis Added]

The proofs of service filed by Petitioner do not indicate whether the person served is the agent for service of process or a general partner or general manager for purposes of CCP 416.40. The hearing is continued for Petitioner to serve the Summons, Second Amended Petition, the Memorandum of Points and Authorities, and notice of the July 22, 2026 hearing in compliance with CCP 416.40. The proof of service should indicate whether the person served is the designated agent for service of process, a general partner, or the general manager.